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Authorised Version No. 321

Crimes Act 1958

No. 6231 of 1958

Authorised Version incorporating amendments as at
26 April 2026

An Act to consolidate the Law Relating to Crimes and Criminal
Offenders.

**BE IT ENACTED by the Queen's Most Excellent Majesty by
and with the advice and consent of the Legislative Council
and the Legislative Assembly of Victoria in this present
Parliament assembled and by the authority of the same as
follows (that is to say):**

1 Short title and commencement

This Act may be cited as the **Crimes Act 1958**
and shall come into operation on a day to be fixed
by proclamation of the Governor in Council
published in the Government Gazette.

S. 1
amended by
Nos 6731
s. 2(1), 6958
s. 8(4)(a), 7088
s. 2(g), 7703
s. 5, 7884
s. 2(1), 8280
s. 2, 8338 ss 2,
7(a), 8425
s. 2(1), 8493
s. 33(a)(i)(ii),
8679 s. 3(1)
(a)(i)(ii), 8870
s. 6(3), 9019
s. 2(1)(Sch.
item 34), 9073
s. 2(c), 9155
s. 4(c), 9228
s. 2(1)(a)(b),
9407 s. 2(c)
(i)(ii), 9509
s. 3(1)(2), 9549
s. 2(1)(Sch.
item 50), 9576
s. 11(1), 10026
s. 2(a)(b),
10079 s. 7(1)
(a)(b), 10084
s. 15(a)(i)(ii),
25/1989 s. 4.

2 Repeals and savings

- (1) The Acts mentioned in the First Schedule to the extent thereby expressed to be repealed are hereby repealed accordingly.
- (2) Except as in this Act expressly or by necessary implication provided—
 - (a) all persons things and circumstances appointed or created by or under any of the repealed Acts or existing or continuing under any of such Acts immediately before the commencement of this Act shall under and subject to this Act continue to have the same status operation and effect as they respectively would have had if such Acts had not been so repealed;
 - (b) in particular and without affecting the generality of the foregoing paragraph, such repeal shall not disturb the continuity of status operation or effect of any proclamation regulation rule order application determination decision validation offence disqualification warrant instrument presentment direction appointment action prosecution proceeding liability or right made effected issued granted committed given presented passed fixed accrued incurred or acquired or existing or continuing by or under any of such Acts before the commencement of this Act.

S. 2(3)
repealed by
No. 8493
s. 33(b).

* * * *

2A Definitions

- (1) In this Act unless inconsistent with the context or subject-matter—

aircraft means every type of machine or structure used or intended to be used for navigation of the air;

* * * *

* * * *

drug of addiction means a drug of dependence within the meaning of the **Drugs, Poisons and Controlled Substances Act 1981**;

incite includes, except in section 195N, command, request, propose, advise, encourage or authorize;

Juries Commissioner has the same meaning as in the **Juries Act 2000**;

S. 2A
inserted by
No. 7088
s. 2(a),
amended by
No. 9509
s. 4(a).

S. 2A(1) def. of
*baseline
sentence*
inserted by
No. 52/2014
s. 11,
repealed by
No. 34/2017
s. 12.

S. 2A(1) def. of
brothel
inserted by
No. 9509
s. 4(b),
repealed by
No. 124/1986
s. 74(a).

S. 2A(1) def. of
*drug of
addiction*
inserted by
No. 9509
s. 4(b),
substituted by
No. 9719
s. 135.

S. 2A(1) def. of
incite
inserted by
No. 10079
s. 8(a),
amended by
No. 11/2025
s. 3.

S. 2A(1) def. of
*Juries
Commis-
sioner*
inserted by
No. 53/2000
s. 94(1).

S. 2A(1) def. of
*legal
practitioner*
inserted by
No. 18/2005
s. 18(Sch. 1
item 27.1),
amended by
No. 17/2014
s. 160(Sch. 2
item 28).

legal practitioner means an Australian lawyer;

S. 2A(1) def. of
*medicinal
cannabis
product*
inserted by
No. 20/2016
s. 143,
repealed by
No. 34/2019
s. 45.

* * * *

S. 2A(1) def. of
*member of
Victoria Police
personnel*
inserted by
No. 37/2014
s. 10(Sch.
item 36.1(a)).

member of Victoria Police personnel has the
same meaning as in the **Victoria Police
Act 2013**;

S. 2A(1) def. of
motor car
inserted by
No. 8338 s. 3,
repealed by
No. 127/1986
s. 102(Sch. 4
item 5.1).

* * * *

S. 2A(1) def. of
motor vehicle
inserted by
No. 127/1986
s. 102(Sch. 4
item 5.1).

motor vehicle has the same meaning as in the
Road Safety Act 1986;

Crimes Act 1958
No. 6231 of 1958

*	*	*	*	*	S. 2A(1) def. of <i>patient</i> <i>medicinal</i> <i>cannabis</i> <i>access</i> <i>authorisation</i> inserted by No. 20/2016 s. 143, repealed by No. 34/2019 s. 45.
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<i>police officer</i> has the same meaning as in the Victoria Police Act 2013;	S. 2A(1) def. of <i>police officer</i> inserted by No. 37/2014 s. 10(Sch. item 36.1(a)).
--	---

*	*	*	*	*	S. 2A(1) def. of <i>prostitute</i> , <i>prostitution</i> inserted by No. 9509 s. 4(c), repealed by No. 124/1986 s. 74(a).
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<i>protective services officer</i> has the same meaning as in the Victoria Police Act 2013;	S. 2A(1) def. of <i>protective</i> <i>services</i> <i>officer</i> inserted by No. 43/2011 s. 14, substituted by No. 37/2014 s. 10(Sch. item 36.1(b)).
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*	*	*	*	*	S. 2A(1) def. of <i>rape</i> inserted by No. 9509 s. 4(c), repealed by No. 8/1991 s. 6(a).
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S. 2A(1) def. of
*standard
sentence*
inserted by
No. 34/2017
s. 24.

standard sentence, in relation to an offence,
has the same meaning as in the **Sentencing
Act 1991**.

S. 2A(1) def. of
Taxing Master
inserted by
No. 24/2008
s. 77,
repealed by
No. 78/2008
s. 25(1).

* * * *

S. 2A(2)(3)
inserted by
No. 9509
s. 4(d),
repealed by
No. 8/1991
s. 6(b).

* * * *

S. 2B
inserted by
No. 51/1989
s. 143(a).

2B Offences under this Act deemed to be indictable offences

Offences under this Act are, unless the contrary
intention appears, deemed to be indictable
offences.

Part I—Offences

Division 1—Offences against the person

(1) *Homicide*

3 Punishment for murder

(1) Notwithstanding any rule of law to the contrary, a person convicted of murder is liable to—

(a) level 1 imprisonment (life); or

(b) imprisonment for such other term as is fixed by the court—

as the court determines.

* * * *

S. 3 substituted by Nos 8679 s. 2, 37/1986 s. 8, amended by Nos 49/1991 s. 119(1) (Sch. 2 item 1(a)), 52/2014 s. 12 (ILA s. 39B(1)).

S. 3(1)(a) substituted by No. 49/1991 s. 119(1) (Sch. 2 item 1(b)), amended by No. 48/1997 s. 60(1)(Sch. 1 item 1).

S. 3(1)(b) amended by No. 49/1991 s. 119(1) (Sch. 2 item 1(c)).

Note to s. 3(1) inserted by No. 65/2016 s. 20(1), repealed by No. 34/2017 s. 25(1).

S. 3(2)
inserted by
No. 52/2014
s. 12,
substituted by
No. 69/2014
s. 11,
repealed by
No. 34/2017
s. 13(1),
new s. 3(2)
inserted by
No. 34/2017
s. 25(2).

- (2) The standard sentence for murder is—
- (a) 30 years if the court, in determining sentence, is satisfied that the prosecution has proved beyond reasonable doubt that—
- (i) the person murdered was a custodial officer on duty or an emergency worker on duty; and
- (ii) at the time of carrying out the conduct the accused knew or was reckless as to whether that person was a custodial officer or an emergency worker; and
- (b) in any other case, 25 years.

Notes

- 1 See sections 5A and 5B of the **Sentencing Act 1991** as to standard sentences.
- 2 Murder is a category 1 offence under the **Sentencing Act 1991**. See section 5(2G) of that Act for the requirement to impose a custodial order for this offence.

S. 3(3)
inserted by
No. 69/2014
s. 11,
repealed by
No. 34/2017
s. 13(1),
new s. 3(3)
inserted by
No. 34/2017
s. 25(2).

- (3) In subsection (2)(a) *custodial officer on duty*, *custodial officer*, *emergency worker on duty* and *emergency worker* have the same meanings as in section 10AA of the **Sentencing Act 1991**.

Note to s. 3
inserted by
No. 69/2014
s. 11,
repealed by
No. 34/2017
s. 13(2).

* * * * *

3A Unintentional killing in the course or furtherance of a crime of violence

S. 3A
inserted by
No. 9576
s. 3(1).

- (1) A person who unintentionally causes the death of another person by an act of violence done in the course or furtherance of a crime the necessary elements of which include violence for which a person upon first conviction may, under or by virtue of any enactment, be sentenced to level 1 imprisonment (life) or to imprisonment for a term of 10 years or more shall be liable to be convicted of murder as though he had killed that person intentionally.
- (2) The rule of law known as the felony-murder rule (whereby a person who unintentionally causes the death of another by an act of violence done in the course or furtherance of a felony of violence is liable to be convicted of murder as though he had killed that person intentionally) is hereby abrogated.

S. 3A(1)
amended by
Nos 49/1991
s. 119(1)
(Sch. 2
item 2),
48/1997
s. 60(1)(Sch. 1
item 2(a)(b)).

3B Provocation no longer a partial defence to murder

S. 3B
inserted by
No. 77/2005
s. 3.

The rule of law that provocation reduces the crime of murder to manslaughter is abolished.

* * * * *

S. 4
amended by
No. 9576
s. 11(1),
repealed by
No. 10079
s. 8(b),
new s. 4
inserted by
No. 77/2005
s. 4,
repealed by
No. 63/2014
s. 3(1).

S. 4A
inserted by
No. 72/2014
s. 3.

4A Manslaughter—single punch or strike taken to be dangerous act

- (1) This section applies to a single punch or strike that—
 - (a) is delivered to any part of a person's head or neck; and
 - (b) by itself causes an injury to the head or neck.
- (2) A single punch or strike is to be taken to be a dangerous act for the purposes of the law relating to manslaughter by an unlawful and dangerous act.
- (3) For the purposes of subsection (2), it is irrelevant that the single punch or strike is one of a series of punches or strikes.
- (4) A single punch or strike may be the cause of a person's death even if the injury from which the person dies is not the injury that the punch or strike itself caused to the person's head or neck but another injury resulting from an impact to the person's head or neck, or to another part of the person's body, caused by the punch or strike.

Example

If a person punches another person to the head, and that other person falls, hits their head on the road, and dies from the injury resulting from their head hitting the road, the punch may be the cause of their death.

- (5) Nothing in this section limits the circumstances in which a punch or strike may be an unlawful and dangerous act for the purposes of the law relating to manslaughter by an unlawful and dangerous act.

(6) In this section—

injury has the same meaning as in
Subdivision (4);

strike means a strike delivered with any part of the
body.

Notes

- 1 Under section 11 of the **Jury Directions Act 2015**, after the close of all evidence and before the closing address of the prosecution, defence counsel must inform the trial judge whether each element of the offence is or is not in issue, including—
 - whether the punch or strike was a dangerous act; and
 - whether the punch or strike caused the person's death.
- 2 Under section 12 of the **Jury Directions Act 2015**, the prosecution and defence counsel must each request that the trial judge give, or not give, to the jury particular directions in respect of the matters in issue, which may include—
 - whether the punch or strike was a dangerous act; and
 - whether the punch or strike caused the person's death.

Notes to s. 4A
amended by
No. 14/2015
s. 69(7)(8).

5 Punishment of manslaughter

Whosoever is convicted of manslaughter shall
be liable to level 2 imprisonment (25 years
maximum).

No. 6103 s. 5.
S. 5
amended by
Nos 49/1991
s. 119(1)
(Sch. 2
item 3),
48/1997 s.
60(1)(Sch. 1
item 3),
65/2016
s. 20(2),
16/2020 s. 3.

Notes

- 1 Manslaughter is a category 2 offence under the **Sentencing Act 1991**. See subsection (2H) of section 5 of that Act for the requirement to impose a custodial order for this offence unless the circumstances set out in paragraphs (a) to (e) of that subsection exist.

Notes to s. 5
inserted by
No. 72/2014
s. 4,
amended by
No. 65/2016
s. 20(3)(4).

- 2 Sections 9B and 9C of the **Sentencing Act 1991** require that, in certain circumstances, a term of imprisonment be imposed for manslaughter and a non-parole period of not less than 10 years be fixed under section 11 of that Act unless the court finds under section 10A of that Act that a special reason exists.

Note 3 to s. 5
repealed by
No. 23/2020
s. 9.

* * * *

- 4 Sections 9B and 9C of the **Sentencing Act 1991** do not apply unless the DPP serves and files a notice under section 9A of that Act.

S. 5A
inserted by
No. 7/2008
s. 3,
amended by
No. 16/2020
s. 4.

5A Child homicide

A person who, by his or her conduct, kills a child who is under the age of 6 years in circumstances that constitute manslaughter is guilty of child homicide and liable to level 2 imprisonment (25 years maximum).

Note to s. 5A
inserted by
No. 65/2016
s. 20(5).

Note

Child homicide is a category 2 offence under the **Sentencing Act 1991**. See subsection (2H) of section 5 of that Act for the requirement to impose a custodial order for this offence unless the circumstances set out in paragraphs (a) to (e) of that subsection exist.

S. 5B
inserted by
No. 16/2020
s. 5.

5B Homicide by firearm

- (1) A person who, by discharging a firearm, causes the death of another person in circumstances that constitute manslaughter is guilty of homicide by firearm and liable to level 2 imprisonment (25 years maximum).
- (2) The standard sentence for homicide by firearm is 13 years.
- (3) In this section—

discharge has the same meaning as in section 31C(4);

firearm has the same meaning as in the **Firearms Act 1996**.

Notes

- 1 See sections 5A and 5B of the **Sentencing Act 1991** as to standard sentences.
- 2 Homicide by firearm is a category 2 offence under the **Sentencing Act 1991**. See section 5(2H) of that Act for the requirement to impose a custodial order unless the circumstances set out in paragraphs (a) to (e) of that section exist.

5C Relationship between manslaughter, child homicide and homicide by firearm

S. 5C
inserted by
No. 16/2020
s. 5.

Nothing in section 5A or 5B is to be taken to provide that conduct that constitutes any one of the following offences is, because it constitutes that offence, incapable of constituting another of those offences—

- (a) manslaughter;
- (b) child homicide;
- (c) homicide by firearm.

6 Infanticide

- (1) If a woman carries out conduct that causes the death of her child in circumstances that would constitute murder and, at the time of carrying out the conduct, the balance of her mind was disturbed because of—
 - (a) her not having fully recovered from the effect of giving birth to that child within the preceding 2 years; or

No. 6103 s. 6.
S. 6
amended by
Nos 9576
s. 11(1),
49/1991
s. 119(1)
(Sch. 2
item 4),
48/1997
s. 60(1)(Sch. 1
item 4),
substituted by
No. 77/2005
s. 5.

(b) a disorder consequent on her giving birth to that child within the preceding 2 years—

she is guilty of infanticide, and not of murder, and liable to level 6 imprisonment (5 years maximum).

S. 6(2)
amended by
No. 68/2009
s. 97(Sch.
item 40.1).

- (2) On an indictment for murder, a woman found not guilty of murder may be found guilty of infanticide.

Note

See sections 10(3) and 421 for other alternative verdicts.

- (3) Nothing in this Act affects the power of the jury on a charge of murder of a child to return a verdict of not guilty because of mental impairment.

S. 6A
inserted by
No. 7546 s. 2.

6A Suicide no longer a crime

The rule of law whereby it is a crime for a person to commit or to attempt to commit suicide is hereby abrogated.

S. 6B
inserted by
No. 7546 s. 2.

6B Survivor of suicide pact who kills deceased party is guilty of manslaughter

- (1) Where upon the trial of a person for the murder of another person the jury are satisfied that the accused caused or was a party to causing the death of that other person by a wilful act or omission but are satisfied on the balance of probabilities that the act was done or the omission made in pursuance of a suicide pact then the jury shall, notwithstanding that the circumstances were such that but for the provisions of this section they might have returned a verdict of murder, return a verdict of manslaughter in lieu thereof.

(1A) Despite section 5, a person convicted of manslaughter under subsection (1) is only liable to level 5 imprisonment (10 years maximum).

S. 6B(1A)
inserted by
No. 49/1991
s. 119(1)
(Sch. 2
item 5(a)),
amended by
No. 48/1997
s. 60(1)(Sch. 1
item 5).

(2) Any person who—

S. 6B(2)
amended by
Nos 9576
s. 11(1),
49/1991
s. 119(1)
(Sch. 2
item 5(b)),
48/1997
s. 60(1)(Sch. 1
item 6(a)(b)).

(a) incites any other person to commit suicide and that other person commits or attempts to commit suicide in consequence thereof; or

S. 6B(2)(a)
amended by
No. 10079
s. 8(c).

(b) aids or abets any other person in the commission of suicide or in an attempt to commit suicide—

shall be guilty of an indictable offence and liable to level 6 imprisonment (5 years maximum); but if the jury are satisfied on the balance of probabilities that the acts constituting the offence were done pursuant to a suicide pact the jury shall return a verdict of guilty of the indictable offence of being a party to a suicide pact and the convicted person shall be liable to level 6 imprisonment (5 years maximum).

(3) The fact that by virtue of this section any person who in pursuance of a suicide pact has killed another person has not been or is not liable to be convicted of murder shall not affect the question of whether the homicide amounted to murder in

the case of a third person who is a party to the homicide and is not a party to the suicide pact.

- (4) For the purposes of this section *suicide pact* means an agreement between two or more persons having for its object the death of all of them whether or not each is to take his own life; but nothing done by a person who enters into a suicide pact shall be treated as done by him in pursuance of the pact unless it is done while he has the settled intention of dying in pursuance of the pact.

S. 7
repealed by
No. 9576
s. 11(1).

* * * * *

No. 6103 s. 8.

8 Petit treason

Every offence which before the twenty-seventh day of June in the year of our Lord One thousand eight hundred and twenty-eight would have amounted to petit treason shall be deemed to be murder only; and all persons guilty in respect thereof whether as principals or as accessories shall be dealt with indicted tried and punished as principals and accessories in murder.

No. 6103 s. 9.
S. 9
amended by
Nos 9576
s. 11(1),
77/2005
s. 8(3)(a)(i)(ii),
7/2008
s. 7(3)(a),
63/2014
s. 3(2),
16/2020 s. 6.

9 Provision for trial for murder or manslaughter in Victoria where death or cause of death only happens in Victoria

Where any person being criminally stricken poisoned or otherwise hurt upon the sea or at any place out of Victoria dies of such stroke poisoning or hurt in Victoria, or being criminally stricken poisoned or otherwise hurt at any place in Victoria dies of such stroke poisoning or hurt upon the sea or at any place out of Victoria, every offence committed in respect of any such case, whether the same amounts to the offence of murder or of manslaughter or of child homicide or of homicide by firearm or of being accessory to

murder or manslaughter or child homicide or homicide by firearm, may be dealt with inquired of tried determined and punished in Victoria in the same manner in all respects as if such offence had been wholly committed in Victoria.

9AA Abolition of year-and-a-day rule

S. 9AA
inserted by
No. 65/1991
s. 3.

- (1) The rule of law known as the year-and-a-day rule (under which an act or omission that in fact causes death is not regarded as the cause of death if the death occurs more than a year and a day after the act or omission) is abolished.
- (2) This section does not apply to acts or omissions alleged to have occurred—
 - (a) before the commencement of the **Crimes (Year and a Day Rule) Act 1991**; or
 - (b) between two dates, one before and one after that commencement.

* * * * *

Pt 1 Div. 1
Subdiv. (1AA)
(Heading and
ss 9AB–9AJ)
inserted by
No. 77/2005
s. 6,
repealed by
No. 63/2014
s. 3(3).

(1A) *Treasonable offences*

Pt 1 Div. 1
Subdiv. (1A)
(Heading)
inserted by
No. 9407
s. 2(a).
(1351–2) 25
Edward III
St V., c. II
(1695–6) 7 and
8 William III
c. III (1708)
7 Anne c. 21
s. 14. (1795)
36 George III
c. VII (1817)
57 George III
c. VI ss 1, 4
and 5.

S. 9A
inserted by
No. 9407
s. 2(a).

9A Treason

S. 9A(1)
amended by
Nos 37/1986
s. 9, 49/1991
s. 119(1)
(Sch. 2
item 6(a)(i)).

(1) A person who—

- (a) kills the Sovereign, does the Sovereign any bodily harm tending to the death or destruction of the Sovereign or maims, wounds, imprisons or restrains the Sovereign;
- (b) kills the eldest child and heir apparent, or the Consort, of the Sovereign;
- (c) levies war, or does any act preparatory to levying war, against the Commonwealth of Australia;
- (d) assists by any means whatever, with intent to assist, an enemy at war with the Commonwealth of Australia, whether or not the existence of a state of war has been declared;

S. 9A(1)(b)
amended by
No. 60/2013
s. 6(Sch. 2
item 1).

- (e) instigates a foreigner to make an armed invasion of the Commonwealth or any Territory not forming part of the Commonwealth; or
- (f) forms an intention to do any act referred to in a preceding paragraph of this subsection and manifests that intention by an overt act—

shall be guilty of an indictable offence, called treason, and liable to—

- (g) level 1 imprisonment (life); or

S. 9A(1)(a) inserted by No. 37/1986 s. 9, amended by No. 49/1991 s. 119(1) (Sch. 2 item 6(a)(ii)), substituted as s. 9A(1)(g) by No. 48/1997 s. 60(1)(Sch. 1 item 7).

- (h) imprisonment for such other term as is fixed by the court—

S. 9A(1)(b) inserted by No. 37/1986 s. 9, amended by No. 49/1991 s. 119(1) (Sch. 2 item 6(a)(iii)), re-numbered as s. 9A(1)(h) by No. 48/1997 s. 62(1).

as the court determines.

- (2) A person who—

- (a) receives or assists another person who is to his knowledge guilty of treason in order to enable him to escape punishment; or

S. 9A(2) amended by Nos 49/1991 s. 119(1) (Sch. 2 item 6(b)), 48/1997 s. 60(1)(Sch. 1 item 8).

(b) knowing that a person intends to commit treason, does not give information thereof with all reasonable despatch to a constable or use other reasonable endeavours to prevent the commission of the offence—

shall be guilty of an indictable offence.

Penalty: Level 3 imprisonment (20 years maximum).

- (3) On the trial of a person charged with treason on the ground that he formed an intention to do an act referred to in paragraph (a), (b), (c), (d) or (e) of subsection (1) of this section and manifested that intention by an overt act, evidence of the overt act shall not be admitted unless the overt act was alleged in the indictment.

Pt 1 Div. 1
Subdiv. (2)
(Heading and
s. 10)
amended by
Nos 9576
s. 11(1),
49/1991
s. 119(1)
(Sch. 2
item 7),
48/1997
s. 60(1)(Sch. 1
item 9), 7/2008
s. 7(3)(b),
repealed by
No. 58/2008
s. 9.

* * * *

Pt 1 Div. 1
Subdiv. (3)
repealed.¹

* * * *

(4) *Offences against the person*

No. 6103 s. 15.
Pt 1 Div. 1
Subdiv. (4)
(Heading and
s. 15)
amended by
No. 9576
s. 11(1),
substituted as
Pt 1 Div. 1
Subdiv. (4)
(Heading and
ss 15–31) by
No. 10233
s. 8(2).

15 Definitions

S. 15
substituted by
No. 10233
s. 8(2).

In this subdivision—

abortion has the meaning given in the **Abortion
Law Reform Act 2008**;

S. 15 def. of
abortion
inserted by
No. 58/2008
s. 10(1).

child means any person under the age of 18 years;

S. 15 def. of
child
inserted by
No. 46/1996
s. 3.

female genital mutilation means all or any of the
following—

S. 15 def. of
*female genital
mutilation*
inserted by
No. 46/1996
s. 3.

- (a) infibulation;
- (b) the excision or mutilation of the whole
or a part of the clitoris;
- (c) the excision or mutilation of the whole
or a part of the labia minora or labia
majora;
- (d) any procedure to narrow or close the
vaginal opening;

- (e) the sealing or suturing together of the labia minora or labia majora;
- (f) the removal of the clitoral hood;

S. 15 def. of
firearm
inserted by
No. 6/2013
s. 3(c).

firearm has the same meaning as in the **Firearms Act 1996**;

S. 15 def. of
*harm to
mental health*
inserted by
No. 6/2013
s. 3(c).

harm to mental health includes psychological harm but does not include an emotional reaction such as distress, grief, fear or anger unless it results in psychological harm;

S. 15 def. of
*imitation
firearm*
inserted by
No. 6/2013
s. 3(c).

imitation firearm has the same meaning as in section 77(1A);

S. 15 def. of
injury
substituted by
No. 6/2013
s. 3(a).

injury means—

- (a) physical injury; or
- (b) harm to mental health—

whether temporary or permanent;

S. 15 def. of
*medical
practitioner*
inserted by
No. 46/1996
s. 3.

medical practitioner means—

- (a) a registered medical practitioner; or
- (b) in relation to the performance of female genital mutilation outside Victoria, a person who, in the place in which the female genital mutilation took place, holds an authority to practise medicine which is similar to that of a registered medical practitioner;